

		default judgment entered against him on January 31, 2026. Plaintiff's opposing papers were late-filed and late-served on May 14, 2026. In addition, and significantly, Plaintiff's opposing papers were not served on Defendant's counsel of record in this action. Accordingly, the Court CONTINUES the motion to set aside and vacate default and default judgment to June 30, 2026 at 10:00 a.m. in Department C25. Plaintiff is ORDERED to properly serve Defendant's counsel of record, and to file proof of service of the same, no later than nine (9) court days before the continued hearing date. A reply may be filed per Code based on the continued hearing date. The Court orders clerk to give notice
105	Ellis vs. Volkswagen Group of America, Inc. 25-01503772	Motion for Attorney Fees Plaintiff, Carl Mason Ellis, moves for attorneys' fees and costs in the total amount of \$26,036.50, consisting of a lodestar amount of \$23,183, including anticipated fees, \$535.24 in costs, and \$2,318.30 for a multiplier of 0.1x. The Motion is GRANTED, in part, DENIED, in part. The Court GRANTS attorneys' fees in the reduced amount of \$16,903. The Court DENIES a multiplier. The Court GRANTS costs in the amount of \$535.24. Objections to the Declaration of Nadia Alam, Esq. The Court OVERRULES Objection Nos. 1-16, and 18.

	The Court SUSTAINS Objection No. 17. Entitlement to Attorneys’ Fees and Costs Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794(d).) “A prevailing party under [Code of Civil Procedure] section 1032 is not necessarily a prevailing party under a separate attorney fee statute. [Citation.] As explained in Wohlgemuth v. Caterpillar Inc. (2012) 207 Cal.App.4th 1252, 144 Cal.Rptr.3d 545, regarding the [Song-Beverly Consumer Warranty] Act: “[W]here (as here) a fee-shifting statute is concerned, a number of Courts of Appeal have taken the approach that attorney fees recovery is governed by the fee-shifting statute itself, rather than a rigid adherence to Code of Civil Procedure section 1032. Under this analysis, if the particular fee-shifting statute does not define prevailing party, then the trial court should simply take a pragmatic approach to determine which party has prevailed. That is, the trial court would determine which party succeeded on a practical level, by considering the extent to which each party realized its litigation objectives. [Citations.] Section 1794(d) is likewise a remedial fee-shifting statute, and thus the same practical approach to the issue of prevailing party is applicable to section 1794(d).’ [Citation.]” (MacQuiddy v. Mercedes-Benz USA, LLC (2015) 233 Cal.App.4th 1036, 1047.) Here, the parties entered into a Settlement Agreement and Release which provides, in part, that Defendant will send payment in the amount of \$27,620.74 to TD Auto Finance to pay off the lien for Plaintiff’s 2024
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	Audi Q4 (the “Subject Vehicle”), and that in exchange for surrender of the Subject Vehicle, Defendant will pay to Plaintiff the total sum of \$66,972.62, minus the payoff amount paid by Defendant to TD Auto Finance. (Declaration of Nadia Alam (“Alam Decl.”), ¶ 15, Ex. E, Settlement Agreement and Release, ¶ A(1), (3).) The Settlement Agreement and Release also states, in part: “If the parties are unable to agree on attorney fees and costs to be paid in this action within 30 days after Plaintiff surrenders the Subject Vehicle, VWGoA will pay Plaintiff’s attorney fees and litigation costs in an amount determined by the Court, on Plaintiff’s noticed motion, to have been reasonably incurred by Plaintiff in connection with the commencement and prosecution of the Subject Lawsuit. If Plaintiff accept this Offer, VWGoA will stipulate that Plaintiff is the prevailing party only for purposes of any motion for attorney’s fees, expenses, and costs;” (Ex. E to Alam Decl., Settlement Agreement and Release, ¶ A(3).) Based on the foregoing, Plaintiff is the prevailing party under Civil Code section 1794(d) and is entitled to recover attorneys’ fees and costs and expenses. Reasonableness of Hourly Rates A court assessing a claim for attorney’s fees under Civil Code section 1794(d) uses the lodestar method to determine the reasonableness of such a claim. (Mikhaeilpoor v. BMW of North America (2020) 48 Cal.App.5th 240, 247-248 (“Mikhaeilpoor”).) “ ‘The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of the time spent and the amount charged ‘It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the
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	complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” . . . [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount.’ [Citation.]” (McKenzie v. Ford Motor Company (2015) 238 Cal.App.4th 695, 698, 703; Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247 [same].) “ ‘ “The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. [Citations.] This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel. [Citations.]” ’ [Citations.]” (Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1055.) “In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41 [citations omitted].) Plaintiff’s counsel seeks fees for four timekeepers: three (3) attorneys and one (1) paralegal. Plaintiff contends that the requested hourly rates are reasonable based on each timekeeper’s experience, rates billed by other attorneys in Song-Beverly Consumer Warranty
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	cases, and rates approved in other Song-Beverly Consumer Warranty cases. Defendant contends that Plaintiff has not met its burden to show the reasonableness of the requested rates, that the rates requested are not reasonable, that the Court should use an average of the rates set forth in the Defendant contends that Plaintiff has not shown that the requested hourly rates are reasonable, that \$450 per hour is unreasonably high for Ms. Alam, that the rates requested are excessive and should be reduced to \$350 per hour for Mr. Fhima, and \$300 per hour for Ms. Diamse and Ms. Alam based on an average of rates set forth in the Real Rate Report. Defendants also contend that none of the listed lawyers referenced by Counsel are out of Orange County. Initially, the Court has sustained the objections to the hourly rates of other lemon law attorneys and therefore they are not considered. The Court declines to utilize the 2021 Real Rate Report cited by Defendant. Defendant provides no other evidence or support for the requested reduced rates. Plaintiff requests hourly rates of \$600 per hour in 2025 and \$625 per hour in 2026 for attorney Aaron Fhima, who was admitted in 2014 and is the principal of Neale & Fhima. (Alam Decl., ¶ 24(a).) Plaintiff's counsel shows that the \$600 hourly rate has for Mr. Fhima has been awarded in other cases. (See Exs. L, N to Alam Decl.) Based on the Court's own knowledge and familiarity with the legal market, the experience and skill of the attorney requesting the fees, and the rate determinations in other cases, these hourly rates the prevailing rates charged by attorneys of similar experience specializing in consumer law in the community of Orange County. Plaintiff requests an hourly rate of \$525 per hour in 2025 for attorney Gabrielle Diamse, who was admitted in 2020, has been an attorney of Neale & Fhima since
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	February 2021, and was promoted to senior associate in January 2025. (Alam Decl., ¶ 24(b).) Plaintiff does not identify any rate determination finding this rate to be reasonable for Ms. Diamse, however, a order from August 2022 in San Diego found Ms. Diamse’s rate of \$425 per hour to be reasonable. (See Ex. P to Alam Decl.) Based on the Court’s own knowledge and familiarity with the legal market and the experience and skill of the attorney requesting the fees, the requested hourly rate of \$525 for Ms. Diamse, though on the high end, is not entirely unreasonable. Therefore, the requested hourly rate of \$525 per hour is reasonable and commensurate with the prevailing rates charged by attorneys of similar experience specializing in consumer law in the community of Orange County. Plaintiff requests an hourly rate of \$450 per hour for attorney Nadia Alam, who was admitted in 2024, and has been an associate of Neale & Fhima since September 2025. (Alam Decl., ¶ 24(c).) Based on the Court’s own knowledge and familiarity with the legal market and the experience and skill of the attorney requesting the fees, the requested hourly rate of \$450 for Ms. Alam is not reasonable. Although the reply attaches an order which found this rate for Ms. Alam to be reasonable, the order is attached to the reply without any evidentiary basis. As such, the Court does not consider the two orders attached to the reply. The Court finds an hourly rate of \$375 per hour for Ms. Alam to be reasonable and commensurate with the prevailing rates charged by attorneys of similar experience specializing in consumer law in the community of Orange County. Lastly, Plaintiff requests an hourly rate of \$220 for Cindie Ianni (“Ianni”). No support is provided for this rate. However, it is apparent from the billing records and orders from other cases that this is Ianni is a paralegal and that the requested hourly rate of \$220 per hour has been found reasonable in other cases. (See. Ex. A to Alam Decl.) Defendant does not dispute this
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	rate. Based on the Court’s own knowledge and familiarity with the legal market and this prior order from Los Angeles, the Court finds that the requested hourly rate of \$220 per hour for Ianni to be reasonable. Reasonableness of Time Expended A court has wide discretion in determining what constitutes reasonable attorney fees. The court typically makes this determination based upon declarations without live testimony. The value of legal services performed in a case is a matter in which the court has its own expertise and thus may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; Padilla v. McClellan (2001) 93 Cal.App.4th 1100, 1107; Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 698 [“experienced trial judge is the best judge of the value of professional services rendered in his court”].) To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc. (2008) 163 Cal.App.4th 550, 563-564.) “The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney over litigated a case or submitted a padded bill or that the opposing party has stated valid objections.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101.) A trial court is not required to issue any explanation of its decision regarding a fee award. (Rancho Mirage
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	Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 264; Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 65.) Plaintiff’s counsel declaration filed in support of the motion provides that counsel billed 34.6 hours prosecuting this case (not 34.5 asserted in the points and authorities). (Alam Decl., ¶ 7.) Based on the Court’s calculations of the billing entries, 36 hours were billed, excluding the first entry. The Court shall rely on the billing records. Plaintiff’s counsel also provides that the lodestar amount is \$19,808. (Alam Decl., ¶ 7.) However, Plaintiff provides that a true and correct copy of time and expense records of attorneys who performed services in this case are attached as Exhibit A, and Exhibit A has a total of \$20,483. The Court reviews the hours expended based on the billing records attached as Exhibit A. Defendant contends that the hours should be reduced or deducted entirety as unnecessary and unreasonable for clerical and administrative tasks that were billed at attorney rates; paralegal tasks that were improperly billed at attorney rates; excessive fees that were billed for template documents; duplicative, excessive, unsupported and vague billing; unnecessary \$3,900 flat fee for case initiation; impermissible block billing; and unreasonable billing for the instant fee motion. Each argument will be addressed in turn. Clerical and Administrative Tasks Billed at Attorney Rates. Defendant contends that Plaintiff’s counsel billed for telephone calls with client to request basic documents, and sending the settlement release to the client which are these tasks that are routinely handled by secretaries. Therefore, Defendants request that Entry Nos. 35, 45, 65, 67, 69, 74 and 75, should be adjusted to reflect a reasonable secretary rate of \$100. (Ex. J to
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	Declaration of Chiamaka S. Enemuoh (“Enemuoh Decl.”).) Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal’s usual rate, regardless of who performs them. (Missouri v. Jenkins (1989) 491 U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service, internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus non-compensable or compensable at a reduced billing rate. (Save Our Uniquely Rural Community Environment v. County of San Bernardino (2015) 235 Cal.App.4th 1179, 1187.) Entry Nos. 35, 45, 65, 67, 69, 74 and 75 concern communications with opposing counsel and the client regarding the settlement agreement and relating to the settlement for effectuation of the same. Such communications are not purely clerical or secretarial. Therefore, no adjustment is made. Paralegal Tasks Billed at Attorney Rates. Defendant contends that Plaintiff’s counsel billed at attorney rates for paralegal tasks, and that documents regarding surrender including receipt, follow up, and forwarding of title authorization forms that are typically handled by paralegal(s) were billed by Plaintiff’s counsel at high rates. Defendant contends that the Court should adjust Entry Nos. 58, 59, 61, 63, 66, 70, 71, 72, 73, 76, 77, and 78, to reflect the reasonable rate of \$200. (Ex. J to Enemuoh Decl.) As the entries identified concern documents and communications related to the effectuation of the settlement. Defendants do not establish that these work related to these kinds of documents and communications are paralegal tasks. Therefore, no adjustment is made. Excessive Fees Associated with Template Documents. Defendant contends that Plaintiff’s counsel relies on boilerplate pleadings and discovery templates, that Plaintiff’s Complaint, discovery requests and responses, deposition notices, and the instant fee
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		motion are a standard form document used in all cases Plaintiff's counsel brings against Defendants, and that these templates are nearly identical across cases against Defendant, requiring minimal effort to update with Plaintiff-specific details. Defendant asserts that such overbilling demonstrates inefficiency and warrants significant reductions, and that the Court should adjust Entry Nos. 12, and 13, 20, 21, 24, 25, 26, 27, 31, 32, and 33, and reduce the billing entry by at least 9 hours, namely 2 hours reduction for the discovery requests to Defendant; 2 hours reduction for Plaintiff's responses to basic written discovery; and 5 hours reduction for the fee motion. Plaintiff acknowledges that forms are used. The use of forms still requires time to particularize discovery requests, discovery responses, and a fee motion to a specific case. In reviewing the entries, the time expended appears reasonable. Therefore, no adjustment is made. Duplicative, Excessive, Unsupported and Vague Billing. Defendant asserts that there is a duplicative entry where two different attorneys billed to review Defendant's initial evidence preservation letter which addresses the case management meet and confer. The Court does not find the entry on September 16, 2025, by Ms. Diamse and the entry on October 6, 2025, by Ms. Alam to be duplicative. Therefore, no deduction is made. Defendant also contends that there were excessive billing entries for review of routine documents and pleadings, and that Entry Nos. 1, 2, 5, 6, 10, 11, 23, should be reduced. (Ex. J to Enemuoh Decl.) In reviewing the entries, the time expended appears reasonable. Therefore, no reduction is made. \$3,900 Flat Fee for Case Initiation. Defendant contends that Plaintiff's counsel's \$3,900 flat rate for case initiation is excessive and unsupported, and that \$3,900 should be stricken in its entirety or reduced to reflect a billable hour. Defendant does not show that this flat rate was reasonably incurred by Plaintiff in connection
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		with the commencement and/or prosecution of this action. The Court adjusts Entry No. 1 to deduct \$3,900 but allows one hour expended by Mr. Fhima. Block Billing. Defendant contends that most of Plaintiff’s counsel’s billing entries are block billed, and that these entries are ambiguous, making it impossible for Defendant, or this Court to decipher how much time was spent on each individualized task. Defendant asserts that the Court should strike Entry No. 1; and adjust Entry Nos. 2, 3, 4, 5, 10, 12, 13, 15, 16, 17, 18, 30, 33, 34, 38, 41, 43, 52, 58, 61, 63, and 76. “Trial courts retain discretion to penalize block billing when the practice prevents them from discerning what tasks are compensable and which are not [Citations.]” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1010-1011.) The Court has reduced Entry No. 1 above. In reviewing Entry Nos. 2, 3, 4, 5, 10, 12, 13, 15, 16, 17, 18, 30, 33, 34, 38, 41, 43, 52, 58, 61, 63, and 76, the entries are block billed, but the tasks are compensable and reasonable and the total time expended for all tasks in each entry is not unreasonable. Therefore, no adjustment is made. Billing for Plaintiff’s Fee Motion. Defendant contends that Plaintiff’s counsel seeks compensation for over 15 hours, including close to 7.8 hours for the fee motion, plus an additional 7.5 hours anticipated to be spent for review of the opposition, reply, and hearing on the motion, and that the time claimed for the motion is excessive and unreasonable as it is a “cookie-cutter” motion requiring minimal effort that was duplicative of prior work. Defendant also contends that reviewing billing entries and records are not properly billed to one’s clients, such that the Court should disallow Entry No. 80 in its entirety. Defendant thus asserts that the Court should eliminate Entry No. 79 and 80 as unnecessary, totaling 1 hour, and reduce the 6.8 hours billed time for the fee motion by 4 hours, to Entry Nos.
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	81, 83, 84, 85, and 86, resulting in at least 5 hours reduction. The Court deducts Entry No. 80 (0.8 hours by Ms. Alam). The Court finds Entry No. 83 to be excessive and deducts 0.4 hours from the 0.9 hours claimed by Mr. Fhima, allowing 0.5 hours. The Court finds all other entries for hours billed and incurred for the instant fee motion to be reasonable. Additional Anticipated Time Plaintiff's counsel seeks additional attorney's fees for anticipated time including an additional 4 hours reviewing Defendant's opposition and preparing a reply, and 2 hours preparing for, traveling to, and attending the hearing on the motion, resulting in an additional \$2,700 in anticipated attorney's fees for these tasks. (Alam Decl., ¶ 8.) A reply has been filed but provides no additional evidence to provide an update as to the hour actually incurred. Nevertheless, as a reply has been filed, and upon review of the opposition, the Court finds that the requested additional time to be reasonable. The Court GRANTS an additional \$2,250 (\$375 x 6.0 hours) for the instant fee motion. Further, Plaintiff anticipates spending an additional 1.5 hours reviewing Defendant's motion to tax costs and preparing an opposition, resulting in an additional \$675 in anticipated attorneys' fees for these tasks. (Alam Decl., ¶ 9.) No motion to tax costs has been filed. Thus, this request for additional fees is DENIED. Based on all of the above and the Court's calculations, the Court deducts 0.8 hours from Ms. Alam's 26.4 billed hours resulting in a total of 25.6 hours expended.
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	25.6 hours multiplied by the reduced hourly rate of \$375 per hour is \$9,600. As for Mr. Fhima, the Court adjusts Entry No. 1 to reflect 1.0 hours at \$600 per hour and adjusts Entry No. 83 to reflect 0.5 hours at \$625 per hour for a total of \$912.50. For Ms. Diamse, the 7.3 hours reasonably incurred multiplied by the \$525 hourly rate is \$3,832.50. With regards to Ianni, the 1.4 hours reasonably incurred multiplied by the \$220 hourly rate is \$308. Lastly, the Court allows additional fees for the instant fee motion in the amount of \$2,250. Thus, the Court GRANTS a reduced lodestar in the amount of \$16,903. Multiplier Plaintiff seeks a lodestar multiplier of 0.1x for a fee enhancement of \$2,318.30 based on delay of payment and Plaintiff having obtained full compensation under the statute. Defendant contends that given the routine nature of this case, lack of complexity, and the minimal litigation required, a negative multiplier is appropriate. “The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased.” (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247.) “The trial court is neither foreclosed from, nor required to, award a multiplier. [Citations.]” (Ibid.) The lodestar may be adjusted based on factors including (1) the novelty of and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th
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		1122, 1132.) “Such fee enhancements are intended to compensate for the risk of loss generally in contingency cases as a class. [Citation.]” (Id. at p. 1133.) This is a standard lemon law action that settled in less than three months after it was filed, and within five (5) weeks after Defendant appeared in the action, with the issue of fees and costs outstanding. (Enemuoh Decl., ¶¶ 4, 5.) The Court does not find an enhancement or negative multiplier warranted under the circumstances of this case. Any risk or delay is already included within the lodestar amount. Both parties’ requests are DENIED. Costs Plaintiff seeks recovery of \$535.24 in costs (incorrectly stated as \$532.20 in points and authorities and Alam Declaration) including the fee for this motion. (See Ex. D to Alam Decl., Memorandum of Costs.) Defendant does not oppose the costs and has not filed a motion to tax costs. The Court GRANTS costs \$535.24. Plaintiff to give notice.
106	Duncan vs. Hoskins 16-00844595	Motion for Reconsideration Defendants Christopher Hoskins and defendant/cross-complainant Colorado Storage Partners, LLC move the Court for reconsideration of its February 24, 2026, order granting Kathleen Duncan and 3D Co Holdings, LLC’s petition to confirm arbitration award. The Motion is DENIED. A motion for reconsideration made by a party must be based on new or different facts, circumstances, or law than those before the court at the time of the original